

BC370891 BC370891

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: BC370891 Hearing Date: August 24, 2026 Dept: 529

ROSEMARIE

LEONG VS BRIAN DOZIER ET AL

motion for order compelling

deposition of defendant phyllis dozier and monetary sanctions

Date of Hearing: August

24, 2026 Trial Date: None set

Department: 529 Case No.: BC370891

Moving Party:

Plaintiffs Rosemarie C. Leong and Intuition, Inc.

Responding Party: No

opposition

BACKGROUND

Plaintiffs Rosemarie C. Leong and

Intuition, Inc. filed this action on May 9, 2007, alleging causes of action

involving fraudulent transfer, breach of contract, breach of fiduciary duty,

conversion, and other tort claims. A dismissal of the entire action was entered

on January 28, 2013.

[TENTATIVE] RULING

Plaintiffs Rosemarie C. Leong and

Intuition, Inc.'s Motion for Order Compelling Deposition of Defendant Phyllis Dozier and Monetary Sanctions is GRANTED.

DISCUSSION

Plaintiffs Rosemarie C. Leong and Intuition, Inc. move for an order compelling Defendant Phyllis Dozier to attend and testify at a deposition and further move for an order imposing monetary sanctions against Defendant Phyllis Dozier in the amount of \$4,316.65. Plaintiffs make the motion on the grounds Defendant failed to attend and testify at her deposition, noticed for April 14, 2026 and the Notice served on her on April 8, 2026.

"If, after service of a deposition notice, a party to the action ... without having served a valid objection ... fails to appear for examination, ... or to produce for inspection any document, ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (CCP § 2025.450(a).)    A motion brought to compel a deposition "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition ... by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (CCP § 2025.450(b)(2).)   

Plaintiffs maintain a Notice of Taking Deposition and Deposition Subpoena was served on Phyllis on April 8, 2026. (Laderman Decl. ¶3.) No objections were served. (Laderman Decl. ¶3.) Defendant Phyllis, however, failed to attend and testify as her deposition. (Laderman Decl. ¶4.) When Defendant did not appear, the court reporter prepared a Reporter's Declaration regarding said non-appearance. (Laderman Decl. ¶4.) As a result of Defendant Phyllis' failure to appear, Plaintiffs have incurred costs associated with this Motion, including \$1,116.65 for the Reporter's Declaration and Court Reporter fees along with \$3,200.00 in attorney fees, for a total of \$4,316.65. (Laderman Decl. ¶5.) The motion is unopposed.

The court GRANTS the motion to compel the deposition of Defendant Phyllis. As noted by Plaintiffs, Defendant failed to appear for her properly noticed deposition. The court also GRANTS the request for sanctions in the amount of \$3,516.65 as Defendant has not

demonstrated they acted with substantial justification.